SHERIFFDOM OF NORTH STRATHCLYDE AT GREENOCK

[2024] FAI 47

GRE-B86-24

DETERMINATION

BY

SHERIFF JAMES VARNEY

UNDER THE INQUIRIES INTO FATAL ACCIDENTS AND SUDDEN DEATHS ETC (SCOTLAND) ACT 2016

into the death of

MARTIN HUGH McGHEE

GREENOCK, 18 October 2024

The Sheriff, having considered the information presented at the Inquiry, Determines in terms of the Inquiries into Fatal Accidents and Sudden Deaths etc (Scotland) Act 2016, (hereinafter referred as ("the 2016 Act"):

(a) In terms of section 26(2) (a) of the 2016 Act (when and where the death occurred)

Martin McGhee was pronounced dead at 0809 hours on 25 January 2021 within cell A13, A Hall, at HMP Greenock, Old Inverkip Road, Greenock, PA16 9AJ

(b) In terms of section 26(2) (b) of the 2016 Act (when and where any accident resulting in the death occurred)

The death of Martin McGhee was not due to an accident.

(c) In terms of section 26(2)(c) of the 2016 Act (the cause or causes of the death)

The cause of the death of Martin McGhee was an incised wound of the left arm

(d) In terms of section 26(2) (d) of the 2016 Act (the cause or causes of any accident resulting in the death)

The death was not due to an accident.

(e) In terms of section 26(2) (e) of the 2016 Act (any precautions which (i) could reasonably have been taken and (ii) had they been taken, might realistically have resulted in the death, or any accident resulting in death, being avoided)

There were no precautions which might realistically have resulted in the death being avoided.

(f) In terms of section 26(2) (f) of the 2016 Act (any defects in any system of working which contributed to the death or the accident resulting in the death)

There were no defects in any system of working which contributed to the death of Mr McGhee

(g) In terms of section 26(2) (g) of the 2016 Act (any other factors which are relevant to the circumstances of the death)

There are no other facts beyond the findings set out in this Determination which are relevant to the circumstances of the death of Mr McGhee.

(h) In terms of section 26(1)(b) of the 2016 Act (recommendations (if any) as to (a) the taking of reasonable precautions, (b) the making of improvements to

any system of working, (c) the introduction of a system of working, (d) the taking of any other steps, which might realistically prevent other deaths in similar circumstances)

No recommendations are made

NOTE

Introduction

[1] This was a mandatory Fatal Accident Inquiry in terms of section 2(4)(a) of the 2016 Act as Mr McGhee died whilst in legal custody at HMP Greenock, Old Inverkip Road, Greenock, PA16 9AJ.

The legal framework

[2] The purpose of the Inquiry in terms of Section 1(3) of the 2016 Act is to establish the circumstances of the death and to consider what steps, if any, might be taken to prevent other deaths in similar circumstances. It is an inquisitorial process. The purpose is not to apportion blame or to attribute fault. Section 26 of the 2016 Act requires the Sheriff to determine a number of issues: where and when the death occurred; when and where any accident resulting in the death occurred; the cause or causes of death; the cause or causes of any accident resulting in the death; any precautions which could reasonably have been taken and had they been taken might realistically have resulted in the death or the accident resulting in the death being avoided; any defects in the system of working which contributed to the death, and any

other relevant factors in the circumstances of the death. In terms of Section 26(4) of the 2016 Act specifically, the Sheriff can make recommendations as a consequence of the issues determined which might realistically prevent other deaths in similar circumstances.

Proceedings and parties

[3] The notice of Inquiry and Form 3.1 were lodged with the court by the procurator fiscal on 12 June 2024. A preliminary hearing took place on 20 June 2024. On that date, a further preliminary hearing was fixed for 8 July 2024 to facilitate the production of an affidavit from the deputy Governor of HMP Greenock. Evidence was led over one day on 26 July 2024. Written submissions were requested from all parties to the Inquiry one week before the hearing on submissions which was set down for 30 August 2024.
In the Inquiry, the public interest was represented by Ms Doran, procurator fiscal depute. Mr Docherty represented the Scottish Prison Service ("SPS"). Ms Mcilwham represented the Prison Officers Association Scotland ("POAS") and Mr Large represented the next of kin, Mrs Janet McGhee. I am grateful to parties for their assistance at all stages of the Inquiry.

[4] It was of considerable assistance to the Inquiry that parties agreed much of the evidence before the court in the form of a finalised joint minute of agreement, lodged on 26 July 2024. The agreed facts are set out in full within the determination. It was also of considerable assistance to the Inquiry to have heard from both prison officers who had interaction with Mr McGhee during the time he spent at HMP Greenock. That approach

ensured that Mrs McGhee had the opportunity to hear evidence, if she so chose, directly from people who had interacted with her late son in the days leading up to his death.

The joint minute of agreement

[5] The parties to the Inquiry agreed as follows:

> **"<u>Background</u>**
>
> 1. **MARTIN HUGH MCGHEE**, born **26 March 1976** (hereinafter referred interchangeably as, 'Mr McGhee' or as, 'the deceased'), was born and raised in Inverclyde and is one of two siblings.
>
> 2. Mr McGhee has a daughter from a previous relationship, who currently lives with her mother. Mr McGhee had no contact with his daughter since 2018. The relationship with his daughter's mother was terminated as at the time of his death.
>
> 3. Mr McGhee was single as at the date of his death.
>
> 4. Mr McGhee had been released from Low Moss Prison on 7 September 2020, and remained subject of a Community Payback order.
>
> 5. On 24 December 2020, Mr McGhee was remanded into custody at His Majesty's Prison Greenock (hereinafter referred to as, 'HMP Greenock'), following an appearance at Greenock Sheriff Court.
>
> 6. As at the date of his remand to custody on 24 December 2020, Mr McGhee had several previous convictions.
>
> 7. Mr McGhee had previously been incarcerated at HMP Low Moss and HMP Barlinnie.
>
> 8. On 20 January 2021, Mr McGhee was convicted and sentenced to a total of ten months imprisonment. Two months of the sentence was for a contravention of the Criminal Procedure (Scotland) Act 1995, section 234A (4), backdated to commence from 24 December 2020. He was sentenced to four months imprisonment, to run concurrently to the aforementioned sentence, for a contravention of the Criminal Procedure (Scotland) Act 1995, section 234A (4), backdated to commence from

24 December 2020. He was sentenced to six months imprisonment, to be served consecutively with the aforementioned sentences, for a further contravention of the Criminal Procedure (Scotland) Act 1995, section 234A (4), backdated to commence from 24 December 2020.

9. Martin McGhee's earliest date of liberation was 24 May 2021, and his sentence expiry date was 23 October 2021.

10. Mr McGhee's family members were listed on his visit list. However, due to the national lockdown associated with the Covid 19 pandemic, no face-to-face visit had taken place since Mr McGhee was admitted to custody.

11. Mr McGhee had access to a prison issued telephone within his cell and could also access the prisoner pay phone.

12. On 6 January 2021, Mr McGhee was assigned protection status within the prison due to an outstanding sexual offence that was due to call at Greenock Sheriff Court on 2 February 2021.

13. Having protection status meant that Mr McGhee was kept separate from the general prison population in order to keep him safe. Mr McGhee's cell, exercise and recreation space was therefore separate from the mainstream prison population.

14. Martin McGhee died on 25 January 2021 at 0809 hours at HMP Greenock, Old Inverkip Road, Greenock. Accordingly, Mr McGhee was in legal custody as of the date of his death.

15. Prior to Mr McGhee's death, the prison held no intelligence or incidents linked to him.

Relevant Medical History and Talk to Me

16. On 1 November 2011 the responsibility and accountability for the provision of health care services to prisoners in Scotland transferred from the SPS to NHS Health Boards.

17. Talk to Me ('TTM') is the Scottish Prison Service's prevention of suicide in prison strategy.

18. A group of experts contributed to the development of TTM. These included experts in suicide prevention together with NHS senior managers, representatives from the Samaritans, Breathing Space and

Families Outside (a charity working with families of prisoners), psychiatrists and other mental health practitioners, personnel from the Scottish Prison Service and representatives from the mental health division of the Scottish Government.

19. As part of TTM, all prisoners are assessed upon entry or re-entry to an SPS establishment.

20. Mr McGhee was seen by Nurse Louise Moyse on the night of his admission to prison on 24 December 2020. The GP Registration form was completed and signed. It was noted that Mr McGhee was a registered alcoholic. His previous medications were noted. Nurse Moyse included in the admission process that Mr McGhee had, 'no thoughts of suicide or deliberate self-harm, talking freely, good body language, no concerns at present'.

21. Nurse Louise Moyse noted Mr McGhee had no significant history of psychiatric disorder, or history of depression and anxiety.

22. On 25 December 2020, Mr McGhee's admission process was completed by Dr McKinley, Forensic Medical Examiner. All of Mr McGhee's medications were prescribed in addition to an alcohol detox protocol, namely chlordiazepoxide and thiamine. Dr McKinley also noted, 'no apparent risk of self-harm at this point'. She did note a previous medical history of depression, an ankle/heel fracture and eczema. She also noted a history of recreational drug use, including cocaine and Valium. She noted Mr McGhee to be, 'talking in sentences'. She described him as, 'calm, compliant, chatty, pleasant'.

23. Mr McGhee was seen by Addiction Support Worker, Mary Tran, on 30 December 2021. Mr McGhee was supplied with Nicotine Replacement Treatment as he was struggling with nicotine withdrawals.

24. On 31 December 2020, Dr Jeyasingh, General Practitioner, met with Mr McGhee to discuss his chronic alcoholism and detoxing from alcohol. Mr McGhee's detox medication was changed from Librium to Diazepam, and his Amitriptyline medication was increased.

25. Any individual working with a prisoner may initiate a TTM assessment should they have concerns about a prisoner at any time. It is not restricted to those times when a prisoner enters or re-enters an establishment.

26. Staff are trained on, 'cues and clues' and precipitating factors and are alive to prisoners' moods changing when, for example, their circumstances change.

27. Mr McGhee returned from Court on 20 January 2021 following his conviction. He had just been sentenced to 10 months imprisonment. He was assessed by Nurse Yvonne Dominick. Nurse Dominick noted that Mr McGhee had, 'good eye contact' and was, 'conversing well'. There was no suicidal ideation or current thoughts of self-harm. Mr McGhee did tell Nurse Dominick that he was suffering the effects of alcohol withdrawal, his detox treatment having finished one week prior. Nurse Dominick discussed this with Nurse Bryce, and she listed Mr McGhee for a doctor appointment for 22 January 2021.

28. On 22 January 2021, Mr McGhee refused to attend the clinic with Dr Clark as he was 'feeling much better'. Dr Clark relisted Mr McGhee for a further appointment on 25 January 2021.

29. Prisoners can make a self-referral to the mental health team within the prison to access mental health support and treatment.

30. On 24 January 2021, Mr McGhee submitted a self-referral healthcare form due to a complaint of, 'feeling physically unwell; was unable to eat for a few days. Low in mood and tired'.

31. When Mr McGhee's self-referral form was received on 24 January 2021, he was relisted for a General Practitioner appointment on 25 January 2021.

32. On 24 January 2021, Mr McGhee was captured on CCTV footage socialising within the protection area of A Hall whereby he is observed speaking to staff.

33. Mr McGhee was not receiving support from the mental health team, and he was not on TTM at the time of his death.

34. Mr McGhee is not recorded as being on TTM or a history of being managed under TTM in any establishment, including during his incarceration at HMP Barlinnie and HMP Low Moss.

35. Mr McGhee was described by Prison staff as preferring to keep to himself, whilst always polite to staff and fellow prisoners.

36. Mr McGhee in the month prior to his death was known to be unwell on occasion, often due to alcohol withdrawal and as such he often skipped meals due to having a poor appetite.

Telephone Call 24 January 2021

37. Mr McGhee telephoned his parents on 24 January 2021 and spoke to both his mother and father.

38. During the call, Mr McGhee discussed his recent breaches of Non-Harassment-Orders and his mother told him he had no-one to blame for his behaviour, other than himself. His mother was supportive of him but informed Mr McGhee that he must address his addictions issues. The family discussed how to send Mr McGhee money and property into the prison. Mr McGhee declined the offer of books or writing materials from his mother. His father told Mr McGhee that his behaviour had caused his mother to be unwell and that she had required to attend the doctor due to the strain his recent offending had caused. Mr McGhee and his family discussed new reporting of his offending. Mr McGhee's mother stated to Mr McGhee during that call that she regretted not giving Mr McGhee enough guidance or tough love and Mr McGhee told her not to blame herself.

39. A fellow prisoner, Mr Z, who was situated within cell 12, next to Mr McGhee's cell, enquired about his wellbeing after the termination of his telephone call. Mr Z noted Mr McGhee to be upset and observed that he looked as though he was about to cry. Mr McGhee told Mr Z that he was, 'fine'.

Events of 25 January 2021

40. At 07:45 hours, Prison Officers Colquhoun and Hyslop were carrying out the unlock numbers check on A Hall. At that time, they found Mr McGhee unresponsive in his cell.

41. Prison Officer Hyslop radio called a code blue for A Hall at 07:49 hours.

42. Nurses McCue and Kiernan attended A Hall immediately and arrived at 07:51 hours.

43. Health care staff noted that Mr McGhee appeared to have cut his upper arm at the elbow joint resulting in heavy bleeding. They believed that Mr McGhee had been dead for several hours, as his body was rigid.

44. An ambulance was requested from the Scottish Ambulance Service ('SAS') at 07.51 hours.

45. The ambulance arrived at HMP Greenock at 08.05 hours.

46. At 08:08 hours on 25 January 2021, Martin McGhee's life was pronounced extinct by paramedics.

47. Mr McGhee's cell was locked at 08:10 hours.

48. Police Officers Paul Elliot and Conner Beggs from the Police Service of Scotland arrived at HMP Greenock at 08.40 hours.

49. Detective Sergeant Stuart Young attended at HMP Greenock in his role as Crime Scene Manager, alongside DC Tracy Coyle, at approximately 10:00 hours.

50. On arrival at cell 13, both DS Young and DC Coyle put on appropriate PPE.

51. DS Young and DC Coyle both observed Mr McGhee to be situated in an upright position, leaning against the bed with his feet on the floor and his head against the wall. His clothing was heavily blood stained. There was blood within the cell on the bed, on the walls, floor and surfaces.

52. DS Young observed an empty Wilkinson Sword pack of disposable razors within a small bin, below the desk within Mr McGhee's cell.

53. DS Young, in his capacity as Crime Scene Manager, observed nothing to suggest that Mr McGhee had sustained injury by any other means than self-inflicted.

54. Scenes of Crime Officer Michael Young attended at Mr McGhee's cell to obtain photographs at approximately 12:30 hours.

55. DS Young and DC Coyle seized property from within the cell, including a single blade from a razor and an empty razor packet. The single razor was situated on the floor, covered in blood and was only identified when Mr McGhee's body was moved as it was in dried blood under Mr McGhee's foot.

56. Police Officers from the Police Service of Scotland told Mr McGhee's next-of-kin of his death at approximately 10:45 hours.

57. A private ambulance arrived at HMP Greenock at 14:10 hours.

58. The private ambulance left HMP Greenock to transport Mr McGhee to the Queen Elizabeth University Hospital mortuary at 14:53 hours.

Register of razors

59. Scottish Prison Service have confirmed that there is no register of razors available for January 2021.

60. There are no canteen records between 24 December 2020 and 25 January 2021 which demonstrate that Mr McGhee bought razors.

Cell Searches

61. Cells are required to be searched a minimum of three times per calendar year.

62. Cells to be searched on any given day are chosen at random.

63. Cells can also be searched and directed on the basis of intelligence.

Post-mortem and toxicology

64. On 08 February 2021 a post-mortem examination was carried out at the Queen Elizabeth University Hospital, Glasgow by Dr Gillian Wilson, Forensic Pathologist.

65. The primary cause of death was established as:

    1(a) Incised wound of the left arm.

66. The post mortem report was completed on 19 February 2021.

67. The Consultant Forensic Pathologist observed over the crease of the left elbow there was a gaping incised wound measuring 4.2cm in length and gaping up to 1.5cm exposing underlying fat and muscle. Above this there was a small superficial clean-cut wound measuring 0.5cm.

68. On the front of the left forearm there was a vertical incision measuring 19.5cm in length. This was described by the Consultant Forensic Pathologist as superficial, exposing only the underlying dermis.

69. Over the front of the lower third of the left forearm and wrist, there were at least six horizontal superficial incised wounds over an area of 3.5 x 4.5cm with the largest measuring 5.5cm.

70. The wound at the left antecubital fossa (elbow pit) was explored and there was a defect in the main vein of the antecubital fossa underlying the incision measured 0.5cm in maximum dimension. This would have caused significant blood loss, especially if untreated.

71. The post-mortem examination included taking small tissue samples for histology.

72. A toxicology report was prepared on 12 March 2021 by Dr Claire Parks and Dr Denise McKeown, both Forensic Toxicologists.

73. Two samples of blood and one sample of urine were collected post mortem for toxicological analysis. The blood samples and urine sample were analysed for alcohol, prescription drugs and drugs of abuse.

74. The blood sample identified Morphine, Desmethyldiazepam, Amitriptyline and Mirtazapine.

75. The urine sample identified Codeine, Morphine and Alcohol.

76. The findings of the toxicological analysis were consistent with the use of morphine and codeine. This indicates use of these drugs separately or heroin use.

77. The alcohol in the urine sample would likely have been produced by post mortem bacterial production of ethanol.

78. Amitriptyline and mirtazapine were detected at therapeutic levels.

79. A metabolite of diazepam was detected in the toxicological analysis.

80. The post-mortem examination concluded that there were no signs of significant underlying natural disease grossly or microscopically.

81. Taking the findings into account, including toxicological analysis, the Consultant Forensic Pathologist concluded that the death was as a result of the incised wound on the left arm.

Death In Prison Learning, Audit and Review ('DIPLAR')

82. DIPLAR is the Scottish Prison Service process for reviewing deaths in custody and provides a system for recording any learning and identified actions. The DIPLAR process is intended to enable areas for improvement following a death in prison custody.

83. A DIPLAR review was carried out in respect of Mr McGhee's death on 1 March 2021.

84. The DIPLAR was chaired by Gill Stillie and had input from thirteen other personnel.

85. There were two learning points/recommendations from the DIPLAR. The two learning points/recommendations are:

> 'A member of the Senior Management Team will feedback to Mr McGhee's family questions that he raised with the Chaplain in relation to Mr McGhee being on Talk to Me in Low Moss Prison.
>
> The family also raised with the Chaplain that they didn't know how to contact the prison to raise an issue about their son's low mood'.

86. The Action points following the learning points/recommendations provided in feedback to the family by the Head of Offender Outcomes, N MacCowan on 10 March 2021, which included the outcome that induction was to be updated with further information for admissions and their family members on how to contact the prison during Covid 19.

87. The DIPLAR was signed and approved by Karen Smith, Governor of HMP Greenock on 12 March 2021.

Productions and Labels

1. Crown Production Number 1 is a true and accurate copy of the post mortem report dated 19 February 2021, concerning the post mortem of the deceased which was carried out on 8 February 2021 at the Queen Elizabeth University Hospital, by Dr Gillian Wilson, Consultant Forensic Pathologist and a true and accurate copy of the toxicology report dated 12 March 2021, prepared by Dr Claire Parks and Dr Denise McKeown, both Consultant Forensic Toxicologists.

2. Crown Production 2 Crown Production is a true and accurate copy of the prison records relating to Martin McGhee, disclosed to COPFS by SPS.

3. Crown Production 3 is a true and accurate copy of the General Practitioner records relating to Martin McGhee.

4. Crown Production 4 is a true and accurate copy of prison medical records relating to Martin McGhee.

5. Crown Production 5 is a true and accurate copy of the Scottish Prison Service and NHS Health Scotland Death in Prison Learning, Audit and Review ('DIPLAR') Report, dated 1 March 2021 in relation to the death of Martin McGhee.

6. Crown Production 6 is a true and accurate copy of the Scottish Prison Service standard operating procedure for razor blades in prison.

7. Crown Production 7 is a synopsis of events generated by SPS in relation to the death of Martin McGhee, seized by Police Service of Scotland dated 26 January 2021.

8. Crown Production 8 is a true and accurate copy of the gate log at HMP Greenock on 25 January 2021, seized by DS Young of Police Service of Scotland on 26 January 2021.

9. Crown Production 9 is a true and accurate copy of A-Hall log at HMP Greenock on 25 January 2021, seized by DS Young of Police Service of Scotland on 26 January 2021.

10. Crown Production 10 is a true and accurate copy of Prisoner Movement in relation to Martin McGhee from July 2012 to 25 January 2021.

11. Crown Production 11 is a true and accurate copy of a photograph obtained by Cheryl O'Donnell, Scenes of Crime Examiner at Police Service of Scotland and depicts a razor blade discovered in the deceased Martin McGhee's cell on 25 January 2021.

12. Crown Production 12 is a true and accurate copy of email correspondence between COPFS case preparer Amy Sermanni and Jeanette Marshall from HMP Greenock.

13. Crown Production 13 is a true and accurate copy of email correspondence between COPFS case preparer Amy Sermanni and Jeanette Marshall from HMP Greenock.

14. Crown Production 14 is a true and accurate copy of Scottish Ambulance Service case review in relation to Martin McGhee completed on 8 March 2023.

15. Crown Production 15 is a true and accurate copy of police statement provided by Mrs Janet McGhee to PC Qasim Kayani on 25 January 2021.

16. Crown Production 16 is a true and accurate copy of police statement of Simon Benstock taken by DS Stuart Young on 28 April 2021.

17. Crown Production 17 is a true and accurate copy of police disclosable statement of Steven Kidd dated 26 January 2021.

18. Crown Production 18 is a true and accurate copy of police statement of Peter Longworth taken by DS Young on 26 January 2021.

19. Crown Production 19 is a true and accurate copy of operational police statement of Detective Constable Tracy Coyle, dated 2 June 2021.

20. Crown Production 20 is a true and accurate copy of operational police statement of Detective Sergeant Stuart Young, dated 18 April 2021.

21. Crown Production 21 is a true and accurate copy of photographs of the razor recovered from Mr McGhee's prison cell taken by Cheryl O'Donnell on 25 January 2021.

22. Crown Production 22 is a true and accurate copy of Scottish Prison Service Talk to Me Strategy.

23. Crown Production 23 is a true and accurate copy of Scottish Prison Service Talk to Me Reception Risk Assessment in relation to Martin McGhee dated 24 December 2020, disclosed to COPFS by SPS on 01 July 2024.

24. Crown Production 24 is a true and accurate copy of Scottish Prison Service Talk to Me Reception Risk Assessment dated 19 January 2021 in relation to Martin McGhee, disclosed to COPFS by SPS on 01 July 2024.

25. Crown Production 25 is a true and accurate copy of HMP Greenock Ailsa Hall Protection Agreement, disclosed to COPFS by SPS on 01 July 2024.

26. Crown Production 26 is a true and accurate copy of CCTV viewing log, compiled by Police Scotland in relation to Crown Label 1.

27. Crown Production 27 is a true and accurate copy of the signed Police statement of Mrs Janet McGhee obtained by PC Qasim Kayani on 25 January 2021.

28. Crown Production 28 is a true and accurate copy of the signed Police statement of Stevie Kidd obtained by DS Young on 4 October 2023.

29. Crown Label 1 is a true and accurate copy of CCTV that has been compiled by the Cybercrime Unit of the Police Service of Scotland into a court playable format, by DC Kane and DS Seggie, originally recovered from camera 104 within HMP Greenock, capturing events between 15:00 hours on 24 January 2021 and 25 08:19 hours January 2021.

30. All typed statements within Crown Productions are to be afforded the status of signed manuscript statements.

31. All statements produced within Crown Productions are to be afforded the status of a 'witness statement' as defined in Rule 4.13 of Act of Sederunt (Fatal Accident Inquiry Rules) 2017.

32. Crown Productions which have been subject to redaction have been redacted by Aimée J Doran, Procurators Fiscal Depute in order to conceal personal and sensitive information of those other than the deceased, Martin McGhee.

33. Production 1 of the First Inventory of Productions for the Scottish Ministers on behalf of the Scottish Prison Service is a true and accurate copy of an Affidavit of Gerard Watt, Deputy Governor of HMP Greenock, notarised by Joanna Lousie Arnott, Solicitor and Notary Public on 3 July 2024 at 1500 hours.

34. Production 2 of the First Inventory of Productions for the Scottish Ministers on behalf of the Scottish Prison Service is a true and accurate copy of the Standard Operating Procedure with reference number OP4.06 relating to routine cell searches within Ailsa Hall at HMP Greenock.

35. Production 3 of the First Inventory of Productions for the Scottish Ministers on behalf of the Scottish Prison Service is a true and accurate copy of the Prison Resource Library concerning Searching Cell and Area Searching."

[6] The Inquiry heard parole evidence from two additional witnesses on the 20 July 2024, namely Mr Steven Kidd, Prison custody officer (retired) and Mr Peter Longworth, Prison Custody officer. For the avoidance of doubt, I considered both officers to be both credible and reliable. Their undisputed evidence was straightforward and candid. It was very helpful in assisting me to understand the background to the operation of the prison, and indeed the practicalities of daily life for those in custody within A Hall. As a consequence of the evidence of PO Kidd, the following further facts have also been proved to my satisfaction on the balance of probabilities:

(i) There are two options for a prisoner within HMP Greenock to legitimately obtain a razor blade, either (1) through purchasing a razor from the canteen where they are on sale or (2) via a request to a prison custody officer to issue a standard prison razor.

(ii) A verbal request for a prison issue razor was made by Mr McGhee to PO Kidd earlier in the day on 24 January 2021. Prior to lock up for the evening, PO Kidd retrieved the razor blade from Mr McGhee, which was fully intact, and disposed of it. The SPS policy referred to in Crown production 6, and implemented locally at HMP Greenock, was properly followed at that time. The paperwork supporting the provision of the razor blade was not available to the Inquiry.

(iii) A third option for obtaining a razor is through an exchange with another prisoner, such exchanges not being recorded. Such exchanges are not permitted in terms of SPS policy.

Submissions

The procurator fiscal

[7] The procurator fiscal depute invited me to make formal findings under the Act.

[8] The procurator fiscal depute submitted it was a matter for me whether I chose to make any findings under Section 26(2)(g) – factors which were relevant to the circumstances of the death. The only realistic finding I was being asked to consider related to the compliance or otherwise of the prison custody officers with the SPS policy, both on this occasion and more generally.

The Scottish Prison Service

[9] Mr Docherty, on behalf of SPS, invited me to make formal findings under the Act. He did not invite me make any findings under section 26(2)(g). In his submission, any such findings would not be relevant to the circumstances of the death. Indeed, insufficient evidence had been led at the Inquiry, in any event, to allow any such findings to be made.

The Prisoner Officers Association

[10] Ms Mcilwham, on behalf of the POA, invited me to make formal findings under the Act. There was no other submission or comment on any other findings.

The next of kin, Mrs McGhee

[11] Mr Large, on behalf of the next of kin, invited me to make formal findings under the Act, in line with the recommendations of the procurator fiscal depute.

[12] I was asked to note further under the formal findings that Mr McGhee was in A Hall as a form of protection unit.

[13] In terms of section 26(2)(g), I was asked to make a finding that the inconsistency in completing the log of razors was a fact relevant to the circumstances of the death

[14] On the basis of the evidence before the Inquiry, and submissions of the parties, I reached the following conclusions in respect of the matters that I am required to determine under section 26 of the Act.

In terms of section 26(2)(a) of the Act (when and where the death occurred)

[15] Parties were all agreed about where and when Mr McGhee died. Together with the evidence contained within the joint minute of agreement, the statement of those present on the day and the post mortem report prepared by Gillian Wilson, that Martin McGhee was pronounced dead at 0809 hours on 25 January 2021 within cell A13, A Hall, at HMP Greenock, Old Inverkip Road, Greenock, PA16 9AJ.

In terms of section 26(2)(b) of the Act (when and where any accident resulting in death occurred)

[16] The death did not result from an accident.

In terms of section 26(2)(c) of the Act (the cause of causes of death)

[17] I accept the evidence of the forensic pathologist in this case, Gillian Wilson. This was quite clearly the cause of death, per my recommendation.

In terms of section 26(2 (d) of the Act (the cause or any causes resulting in the death

[18] The death did not result from an accident.

In terms of section 26(2)(e) of the Act (any precautions which (i) could reasonably have been taken, and (ii) had they been taken, might realistically have resulted in the death, or any accident resulting in the death, being avoided

[19] No submissions were made by any party in relation to any precautions which could reasonably have been taken which might have prevented the death of Mr McGhee.

[20] Mr McGhee had been remanded into custody on 20 December 2021. He had previously served periods of imprisonment. On being admitted to HMP Greenock on that evening, he was seen by medical staff who assessed him for (i) his alcohol addiction and (ii) any thoughts of suicide or self-harm. There were no concerns in relation to Mr Mcghee at that point.

[21] On 25 December 2020, Mr McGhee's admission process was completed by Dr McKinley, Forensic Medical Examiner. All of Mr McGhee's medications were prescribed in addition to an alcohol detox protocol, namely chlordiazepoxide and thiamine. Dr McKinley also noted, "no apparent risk of self-harm at this point". She did note a previous medical history of depression. Dr McKinley described Mr McGhee as "calm, compliant, chatty, pleasant".

[22] Mr McGhee was seen by Addiction Support Worker, Mary Tran, on 30 December 2021. Mr McGhee was supplied with Nicotine Replacement Treatment as he was struggling with nicotine withdrawal.

[23] On 31 December 2020, Dr Jeyasingh, General Practitioner, met with Mr McGhee to discuss his chronic alcoholism and detoxing from alcohol. Mr McGhee's detox medication was changed from Librium to Diazepam, and his Amitriptyline medication was increased.

[24] Mr Mcghee was returned from court on 20 January 2021, following upon a sentence of imprisonment of 10 months. At that point, Mr McGhee was again assessed by medical staff who did not consider he required intervention under the talk to me policy. Furthermore, Mr McGhee did not request assessment under the policy. He was referred for a medical appointment on 21 January 2021 to deal with symptoms of alcohol withdrawal. He did not attend that appointment as he cancelled the appointment as his condition had improved.

[25] On 24 January 2021, a request for a medical appointment was made by Mr McGhee in relation to "feeling physically unwell; was unable to eat for a few days.

Low in mood and tired". An appointment was made for Mr McGhee to attend on 25 January 2021. Events superseded that appointment, Mr McGhee having taken his own life that morning.

[26] I am satisfied on the evidence heard that appropriate medical care was provided to Mr McGhee at all times during his period in custody, until the date of his death. As such, there were no reasonable precautions in this area which would have allowed me to conclude that his death could have been prevented.

[27] The other main theme of the Inquiry related to how Mr McGhee came to be in possession of the razor blade which he used to assist his death. I am satisfied on the evidence led that Mr Mcghee requested a razor blade on the morning of 24 January 2021. I am also satisfied that it was returned, intact, later that evening. The register of razor blades was not available from SPS for consideration by the Inquiry. There was no substantive explanation for this. However, given that confirmation was received from PO Kidd that the razor blade was returned, I did not consider that much turns on this. It is clear that razor blades were available to those in custody, either from (i) SPS (ii) the canteen or (iii) through prisoner exchange. No evidence was led to suggest that they could not possess them in appropriate conditions. I simply could not be satisfied on the evidence led at the Inquiry about where the razor blade used by Mr McGhee actually came from. As a consequence, given there was no absolute ban on having a razor blade, I could not determine any reasonable precaution which might have prevented its use, and as a consequence, the death.

[28] In all the circumstances, on the evidence led, I was therefore unable to identify any reasonable precautions which might have prevented his death.

In terms of section 26(2)(f) of the Act (any defects in any system of work which might have contributed to the death, or the accident resulting in the death

[29] I was not invited by any party to make any determination under this heading. On the evidence led, that is entirely appropriate. As explained, there was no evidence led about where the razor blade came from. As such, I cannot identify that there was any defect in the system of work which might have contributed to the death. If anything, the evidence was such that I was satisfied that insofar as the obligations of SPS provide that razor blades should be provided to those in custody, and having heard evidence on the procedure for doing so, the process in place did work perfectly well, albeit the paperwork was not available to the Inquiry.

In terms of section 26(2)(g) of the Act (any other facts which are relevant to the circumstances of the death).

[30] I was invited by the PFD, and by Large on behalf of the next of kin, to determine that a relevant fact in the circumstances of the death was the fact that the razor blade paperwork was not filled out on this occasion. More generally, I was being invited to determine that there was a lack of compliance generally with the policy by staff and that this was relevant to the circumstances of the death of Mr McGhee.

[31] Having considered the evidence, I do not consider there was a sufficient amount of evidence led to allow me to make any such determination. Firstly, the positon of Mr Kidd was not that he did not accept that he had not filled in the appropriate paperwork on this occasion. He was simply unsure about whether he had done so. There was insufficient evidence led for me to conclude that any real issue existed with completing paperwork at HMP Greenock, or indeed that it was relevant to the death. As such, I do not consider it appropriate to make any finding under this head.

In terms section 26(1)(b) of the Act, recommendations (if any) as to (a) the taking of reasonable precautions, (b) the making of improvements to any system of working (c) the introduction of a system of working (d) the taking of any other steps, which might realistically prevent other deaths in similar circumstances):

[32] Taking all of the evidence into account, together with the findings made, I do not consider there to be any recommendations which would be appropriate.

Closing remarks

[33] I conclude by offering my condolences, to the deceased's family, which were offered in court.